

HOUSE No. 1185

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan M. Hamilton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to health savings accounts.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Ryan M. Hamilton</i>	<i>15th Essex</i>	<i>1/16/2025</i>

HOUSE No. 1185

By Representative Hamilton of Methuen, a petition (accompanied by bill, House, No. 1185) of Ryan M. Hamilton relative to health savings accounts. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to health savings accounts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 176A of the General Laws is hereby amended by inserting after
2 section 8UU(b) the following section:-

3 (a) As used in this section, "health savings account-qualified health insurance policy"
4 means a policy of individual or group health insurance coverage that satisfies the criteria for a
5 high deductible health plan under 26 U.S.C. § 223.

6 (b) A health savings account-qualified health insurance policy is exempt from a
7 prohibition on cost-sharing requirements for a covered benefit that is required under state law to
8 the extent the exemption is necessary to meet the criteria for a health savings account-qualified
9 health insurance policy.

10 (c) This section does not apply to any coverage required by state law that pertains to
11 preventive care as defined by regulation or guidance issued by the United States Department of
12 the Treasury under 26 U.S.C. § 223, with respect to any health savings account-qualified health

- 13 insurance policy issued, delivered, amended, or renewed while the regulation or guidance issued
- 14 by the United States Department of the Treasury is effective.